

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOE009502: JOSE CAMPOS vs E AND E MURRAY INCORPORATED

08/5/2026 in Department 44

Hearing on Motion for Final Approval of Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Final Approval of Class Action Settlement & Approval of PAGA Settlement (“Motion”)

Tentative Ruling:

This Motion initially came on for hearing on April 16, 2026, and was continued to allow Plaintiff to address certain identified deficiencies with the Motion. Having now received supplemental responsive materials that addressed those deficiencies, the Court now GRANTS the Motion subject to a designation of a charity pursuant to Code of Civil Procedure section 384, or an explanation by counsel why the disbursement to the Unclaimed Property Fund at the State Controller’s office is appropriate, as follows:

1. Approval of Key Financial Terms of Settlement

Description	Preliminarily Approved	Approved
Gross Settlement Amount (GSA)	\$679,800	\$696,106 ¹
Less: Attorney Fees (not to exceed)	\$226,600	\$209,700
Less: Costs (not to exceed)	\$25,000	\$19,423
Less: Administrative Costs (not to exceed)	\$8,950	\$8,950
Less: PAGA Penalties	\$50,000	\$50,000
Less: Service Award	\$10,000	\$7,500
Net Settlement Before PAGA add-back	\$359,250	\$400,533
Plus PAGA Penalty to Aggrieved Employees (allocated per Lab. Code § 2699(m)) ²	\$12,500	\$12,500
Net Settlement After PAGA add-back	\$371,750	\$413,033

2. **Timely Service.** The Motion was timely served on all parties, to include service of the Motion and settlement agreement on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. **Conformity with Rules of Court.** The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Plaintiff's moving papers were substantially compliant with these rules, however, the bookmarked exhibits were not identified with a description of the exhibits beyond marking them as "Exhibit A," for example. The Court admonishes that Plaintiff bookmark electronic exhibits in this detailed manner in the future in compliance with the rules of court.

¹ Once the class data was provided, the number of actual workweeks for the 579 class members was 25,570, which increase triggered the escalator clause, and increased the gross settlement to \$699,106.32.

² Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).)

4. Class Notice, Opt Outs, Objections & Estimated Payments

The class is defined as: all non-exempt, hourly individuals that worked for Defendant in California at any time from January 2, 2023 through May 13, 2025.

The Court finds that class notice was disseminated in compliance with the Preliminary Approval Order, California Rules of Court, rule 3.766, and in a manner that satisfies due process.

At preliminary approval, the estimated number of class members was **536**, and the final number of class members is **579**. Collectively, the class members worked **25,570 workweeks**. The settlement allocation formula provided for **\$50,000 or approximately 7% of the gross settlement be allocated to PAGA**. A total of 20 notice packets to class members, or 3.5 % were deemed undeliverable, no class members sought to be excluded from the class or objected. Based on the preliminary approval numbers, the average individual payout per class member was estimated to be **\$647.45**, with the range of payments from **\$1,817.92 to \$14.66**. The average PAGA payment is estimated to be **\$21.55**, with a range of **\$0.49 to \$60.55**.

5. **Attorney Fee Award.** The Court preliminarily approved a percentage **fee recovery up to 33 % of the common fund**. (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503.) At preliminary approval, the Court explained that it uses a benchmark of 25% of the gross settlement amount, and now considers the information submitted by class counsel as well as a lodestar cross check to determine whether the final award justifies a departure from the Court's benchmark.

Lodestar Cross-Check. Class counsel request fees of **\$226,600**, representing **33%** of the **Gross Settlement Amount**. In a common-fund case, the Court may award a reasonable fee calculated as a percentage of the fund and may in its discretion employ a lodestar cross-check to confirm that the percentage yields a reasonable fee. (*Laffitte v. Robert Half Internat., Inc.* (2016) 1 Cal.5th 480, 503, 506.) The lodestar is the number of hours reasonably expended multiplied by a reasonable hourly rate. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Class counsel have submitted declarations reporting **279.6** hours reasonably expended, at hourly rates ranging from **\$500 to \$1,500**. Having reviewed the information submitted, which did not include billing records, the Court does not have sufficient information to conduct an analysis but also that given the Court's experience in evaluating class action settlements and for wage an hour cases in particular, the hours Plaintiff's counsel claims to have expended does not seem unreasonable. The Court also finds that the high end of the billing rate, or \$1,500 is unreasonably high for the local legal market, and that a blended rate of \$750 would be reasonable. The lodestar yields a total of **\$209,700**. The Court notes that on a cross-check, the lodestar figure need not be scrutinized with the same precision required when the lodestar is the primary basis for the award. (*Laffitte*, at p. 505.)

Based on the foregoing analysis, the Court approves an attorney fee award in the amount of **\$209,700** bears a reasonable and proportionate relationship to counsel's contribution.

6. **Service Award.** Plaintiffs, **Jose Campos**, seek an incentive award of **\$10,000**. At preliminary approval, the Court approved a service award of \$12,500 without prejudice to

Plaintiff's ability to request an amount up to **\$10,000**. The Court has reviewed Plaintiff, Jose Campos' declaration and finds within its discretion that an award of **\$7,500** is reasonable and reflects the class representative's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.)

7. **Attorney Costs.** Costs were previously approved in an amount not to exceed **\$25,000**. Plaintiff's counsel now submits a request for approval of verified costs in the amount of **\$20,790.58**. The court has reviewed the information submitted in support of the requests for costs and allows the amount requested, with the exception of \$1,368 for CourtCall costs in the amount of **\$19,423**.

8. **Settlement Administration.** The Court previously appointed **ILYM Group, Inc.** as the settlement administrator in this case. The Court has now reviewed the declaration of the administrator that verifies the timely sending of class notice, efforts to find class members with invalid addresses, the number of objections from class members, the number of opt outs from class members.

The Court previously approved costs for the settlement administrator in an amount not to exceed **\$8,950**. Of these requested costs, and according to the Declaration of **Nick Castro**, \$8,950 in costs have been incurred by the administrator with an estimated costs to be incurred for issuing settlement checks, processing tax withholding and reporting, mailing payments, responding to post-distribution inquiries, handling stale or reissued checks, and preparing any final reports required by the Court or the parties. The Court finds that the final expenses requested are reasonable and approves the requested expenses up to **\$8,950**.

9. **Cy Pres.** The Court previously approved that any unclaimed / uncashed checks would be distributed to the Unclaimed Property Fund of the State Controller's office. The Court requires the parties select a cy pres charity recipient in accordance with Code of Civil Procedure section 384, or provide an explanation why the State Controller's Unclaimed Property Fund is the more appropriate recipient for any unclaimed settlement funds in this case before the Court signs the final approval order.

10. **Fairness of Settlement.** The Court previously found that Plaintiff met their burden to show that the settlement was obtained after an arm's-length negotiation, and is fair, adequate and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) The Court now confirms its prior findings in connection with its review of the Motion for Final Approval. Based on the final record - including the notice results, the number of objections and requests for exclusion, and the reaction of the class - the Court independently finds the settlement fair, adequate, and reasonable and in the best interests of the class. (Cal. Rules of Court, rule 3.769(g).) The Court further finds the PAGA settlement fair, reasonable, and adequate in view of PAGA's purposes (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77), and confirms the settlement was submitted to the LWDA; the release

reflects that aggrieved employees may not opt out of the PAGA settlement (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 541, fn. 5).

11. **Disposition.** Subject to any modifications above, the Court GRANTS the motion and will sign the proposed order **to be modified in accordance with this order / submitted in connection with the Motion.** The Court retains jurisdiction over the parties to enforce the terms of the settlement (Code Civ. Proc., § 664.6) and the judgment. Any Proposed Judgment shall not include a dismissal or findings not contained in this order. (Cal. Rules of Court, rule 3.769(h).) The parties are ordered to otherwise effectuate the terms of the settlement in a manner not inconsistent with this Order.

The Court hereby sets the hearing for final settlement compliance on Wednesday, **February 3, 2027 at 1:30 p.m.** Plaintiff shall file a declaration concerning settlement compliance at least 10 days in advance of the compliance hearing date.

Plaintiff's counsel shall give notice.